

CUI
JUSTIFICATION FOR OTHER THAN FULL AND OPEN COMPETITION
SOLICITATION SPE7L125R0027

☒ **ORIGINAL**

☐ **ADDENDUM (attach copy of original J&A for add-ons or revisions)**

1. The Defense Logistics Agency, DLA Land and Maritime, is the contracting activity.
2. The action being approved is the acquisition of supplies on other than a full and open competition basis.
3. The supplies required to meet the using activity's needs are described as follows:

BRIEF DESCRIPTION	NSN/P/N	QUANTITY	EST. VALUE	AMSC
SNORKEL, EXHAUST	2990-150288979	15 EA		3/D

END ITEM: AMPHIBIOUS COMBAT VEHICLE (ACV)

ESTIMATED BASE VALUE: \$

ESTIMATED TOTAL VALUE (BASE + OPTIONS): \$

MAXIMUM CONTRACT VALUE: \$

The estimated value is based on the quotes received from the original solicitation. Note – this is a first time buy and was originally solicited under SPE7L324T358U.

4. The statutory authority permitting other than full and open competition is:
☒ 10 U.S.C. 3204(a)(1) - Available from only one or a limited number of sources.

5. If restricted to the only source(s) of supply, include source(s) and CAGE code:
 - a. IVECO DEFENCE VEHICLES S.P.A. A4249 P/N 5802074998

The use of the authority cited below:

AMC 3. Acquire, for the second or subsequent time, directly from the manufacturer.

The use of the authority cited is based on:

AMSC D. The data needed to acquire this part competitively is not physically available, it cannot be obtained economically, nor is it possible to draft adequate specifications or any other adequate, economical description of the material for a competitive solicitation. AMCS 3, 4, or 5 are valid.

Product Specialist, Frankling Rudolph Adkins, certified the technical certification on 12/5/2024"

This item has an AMC/AMSC of 3/D. DLA does not possess adequate data, lacks rights to data, and/or has no record of an alternate Design Control Activity approved source. The data presently available reflects the minimum needs of the Government. There is no outstanding DLA Form 339 request for additional sources.

6. Efforts to ensure that offers are solicited from as many sources as practicable are:
☒ The acquisition will be synopsisized for 15 days prior to solicitations opening on DIBBS for 30 days.
☒ Dealers of the manufacturers will be solicited.

Controlled by: DLA Land and Maritime
Controlled by: [FLSCD]
CUI Category: PROCURE/SSI
Distribution/Dissemination Control: FED ONLY
POC:

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7. I hereby determine that the anticipated cost to the Government will be fair and reasonable.
 - a. A price analysis will be conducted using historical pricing, the Producer Price Index (PPI), and learning curve analysis. Cost or pricing data in accordance with FAR 15.403-4 will be requested if the offeror's proposal exceeds the \$2M threshold for obtaining cost data, however, it is anticipated that this procurement will not exceed that threshold. Offerors may be requested to submit information other than cost or pricing data for determining price reasonableness. Based on the above techniques, the Contracting Officer anticipates that the cost to the Government will be fair and reasonable.
8. Market Research/Efforts to Obtain Competition:

[illegible]

This PO history shows no past awards.

This is a first time buy, and this acquisition was initially solicited under simplified acquisition procedures since it was estimated under \$250,000. Since the quotes received exceeded \$250,000, this requirement is being resolicited under FAR Part 15. The follow vendors submitted quotes on the original solicitation:

PIONEER INDUSTRIES (66200)
TNL SALES (1XGL2)
JGILS, LLC (1N8T8)
HOOISER INDUSTRIAL SUPPLY (0RCD8)

A source sought was posted on 12/12/2024 and was posted for 5 business days. One response was received from BHPE (9SW57) and forwarded the Source Approval Request Guide.

Market Survey [10 U.S.C. 3204(e)(2)(D)]: A market survey for PIONEER INDUSTRIES (66200), TNL SALES (1XGL2), JGILS, LLC (1N8T8), and HOOISER INDUSTRIAL SUPPLY (0RCD8) was conducted on 12/11/2024 with a follow-up email on 1/17/2024. A market survey was sent to the approved source (IVECO) on 1/24/2025 with a follow up on 1/30/2025.

Total number of vendors contacted: 5
PIONEER INDUSTRIES (66200)
TNL SALES (1XGL2)
JGILS, LLC (1N8T8)
HOOISER INDUSTRIAL SUPPLY (0RCD8)
IVECO (A4249)

Names of vendors contacted and responding: 1

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PIONEER INDUSTRIES (66200)

Techniques used to conduct survey: Email

Types of information requested: Business size, manufacturer or dealer, commerciality, price breaks, minimum order quantity, and estimated delivery

Summary of information received: Pioneer Industries stated they are a large business and not the actual manufacturer of the item. They prefer to deal directly with the government.

This item is not commercial

Information received regarding the commerciality of the item(s): Pioneer Industries indicated it was not commercial. No results were returned on GSA or CID database. Market research did not yield any readily available published catalog price lists, schedules, or other form of commercial pricing that are regularly maintained and updated by a manufacturer or vendor, and that are available to the general public for inspection. There is no evidence of sale prices at which sales were made to a significant number of buyers constituting the general public. Therefore, the Contracting Officer determines this item to be non-commercial, thus FAR 15 procedures will be utilized.

9. Additional facts supporting other than full and open competition are:

[x] Based upon the attached technical certification, technical data is not available and cannot be developed to permit full and open competition. The data presently available reflects the minimum needs of the Government.

10. A listing of sources, if any, indicating an interest in the acquisition is: (If none, so state)
PIONEER INDUSTRIES (66200)

11. The following actions are being taken to identify additional sources:

[X] Solicitation contains DLA Procurement Note, L04 Offers for Part Numbered Items

[X] Solicitation contains DLA Procurement Note, M06 Evaluation of Offers for Part Numbered Items

12. DFARS PGI (Procedures, Guidance and Information) 206.303 and 206.304 state that justifications citing the authority at FAR 6.302-1 to permit the use of other than full and open competition shall include a copy of a previous justification. This is a first-time buy, therefore there is no previous J&A.

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I hereby certify that the information contained in this justification is accurate and complete to the best of my knowledge and belief. If not exceeding \$750,000, this signature serves as the approval.

TUBBS.JOHN.D.1076026684 Digitally signed by TUBBS.JOHN.D.1076026684
Date: 2025.02.27 13:40:03 -05'00'

Contracting Officer

Date

APPROVAL REQUIREMENTS

- | | |
|---|---|
| ☒ Up to \$750,000 | Contracting Officer |
| ☐ \$750,000 to \$15,000,000 | Competition Advocate |
| ☐ Over \$15,000,000 to \$100,000,000 | Head of Contracting Activity (HCA) |
| ☐ Over \$100,000,000 | Senior Procurement Executive (AQ)
(DLA General Counsel signature line required when sending to AQ) |

Attachment(s):

1. Technical Data Supporting- Limited Sources